

Vijay Pal Singh v. Madhyanchal Vidyut Vitaran Nigam Ltd.

Allahabad High Court, Lucknow Bench · Division Bench · 16 January 2025 · 2025:AHC-LKO:2664-DB · Writ - C No. 11368 of 2024 · **Writ dismissed; liberty to pursue statutory remedies.**

HEADNOTE

A writ disputing a theft-related electricity bill is not entertained where remedies under the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 have not been availed; petition dismissed with liberty.

FACTUAL SUMMARY

Vijay Pal Singh filed a writ petition at the Lucknow Bench of the Allahabad High Court against Madhyanchal Vidyut Vitaran Nigam Ltd. and others. He disputed an electricity bill dated 17 May 2023. The Court recorded that the matter was a case of electricity theft. Counsel were heard. The order notes that remedies prescribed under the Electricity Act, 2003 (styled as the Uttar Pradesh Electricity Act, 2003) and the U.P. Electricity Supply Code, 2005 had not been availed.

HOLDING-UNITS

INTERPLAY · UP-2005::(unspecified)

alternate-remedy-theft-bill

HOLDING

A writ petition disputing a theft-related electricity bill will not be entertained when statutory remedies under the Electricity Act, 2003 or the U.P. Electricity Supply Code, 2005 have not been availed. The petition is dismissed with liberty to pursue those remedies. ¶ 2-3

FLAG No section or Supply Code clause is numbered. The order invokes unspecified remedies under the 'Uttar Pradesh Electricity Act, 2003' (misnomer for the Electricity Act, 2003) and the U.P. Electricity Supply Code, 2005 in a case described as electricity theft.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL DATED 17.05.2023 AND THE ELECTRICITY-THEFT ALLEGATION

Writ declined without examining the bill or the theft allegation; liberty reserved to statutory remedies. ¶ 2-3